

**JANUARY 28, 2008**MICHAEL W. DOBBINS
CLERK, U.S. DISTRICT COURTUNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF ILLINOIS
EASTERN DIVISION**RECEIVED**

JAN - 3 2008

MICHAEL W. DOBBINS
CLERK, U.S. DISTRICT COURT

JAN 03 2008

Michael S. O'Donnell
Apartment 1214
1020 W. Lawrence
Chicago, Illinois 60640

v.

Case No.

Nicky Posey, III
9345 S. Oglesby Avenue
Chicago, Illinois 60617**08CV0061**
JUDGE ANDERSEN
MAG. JUDGE KEYS

and

United States Postal Service
4850 N. Broadway
Chicago, Illinois 60640

COMPLAINT

COMES NOW the plaintiff, Michael S. O'Donnell, and, for his complaint against the defendants, states as follows:

1. The occurrence complained of herein occurred at approximately 7:08 p.m. on January 3, 2006, at or near the intersection of Glenwood Avenue and Carmen Street on the north side of Chicago, within the Northern District of Illinois.

2. The Plaintiff is a resident of the Northern District of Illinois.

3. On information and belief, the Defendant Nicky Posey III is a resident of Chicago, Illinois, within the Northern District of Illinois.

4. On information and belief, the Defendant United States Postal Service is a United States-related government entity.

5. At the afore-mentioned time and place, the Plaintiff Michael S. O'Donnell was manually operating his bicycle in the southbound lane of Glenwood Avenue, having just passed Carmen Avenue. The Plaintiff was operating his bicycle carefully and in accordance with all applicable laws and rules of the road.

6. At the afore-mentioned time and place, the Defendant Nicky Posey, III, was operating a truck owned by the Defendant United States Postal Service, having just made a right turn from the eastbound lane of Carmen Avenue into the southbound lane of Glenwood Avenue.

7. At the afore-mentioned time and place, the truck being operated by the Defendant Nicky Posey, III, struck the bicycle being operated by the Plaintiff from the rear.

8. At the afore-mentioned time and place, the Defendant Nicky Posey, III, had a duty to use reasonable care and caution in operating his truck and to obey the applicable laws of the State of Illinois and the City of Chicago.

9. At the afore-mentioned time and place, the Defendant Nicky Posey, III, notwithstanding his afore-mentioned duties, was guilty of negligence in one or more of the following respects:

- a. failure to come to a complete stop at the stop sign controlling eastbound traffic on Carmen Avenue,
- b. failure to decrease the speed of his truck in order to avoid colliding with the Plaintiff,
- c failure to stop his truck in time to avoid colliding with the Plaintiff's bicycle, although he saw or should have seen that such a collision was imminent,

d. failure to keep his truck under proper control and

e. failure to yield the right of way to the Plaintiff.

10. As a direct and proximate cause of one or more of the afore=mentioned negligent acts or omissions, the Plaintiff suffered serious and permanent bodily injury and damage to his property.

WHEREFORE, the Plaintiff Michael S. O'Donnell prays for judgment against the Defendants in the amount of \$20,000.00.

Michael S. O'Donnell 03 JAN 2008
Michael S. O'Donnell

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